

(e) A description of the property to be attached [...].

(Code Civ. Proc., § 484.020.)

A defendant who opposes a right to attach order must give notice of his objection, “accompanied by an affidavit supporting any factual issues raised and points and authorities supporting any legal issues raised.” (Code Civ. Proc. § 484.060, subd. (a).) The defendant may make a claim of exemption with respect to his property in the opposition. (Code Civ. Proc. § 484.070.)

“Before issuance of a writ of attachment [...] plaintiff shall file an undertaking to pay the defendant any amount the defendant may recover for any wrongful attachment by the plaintiff in the action.” (Code Civ. Proc., § 489.210.)

Discussion

The declaration supporting plaintiff’s applications adequately itemizes damages and references the attached documents, which allow recovery of the stated sum. While defendants allude to various defenses, they do not provide supporting evidence. The opposition argues the defendants were not getting the benefit of the lease agreement, “an 800,000 square foot building filled with workers who could frequent the restaurant,” but defendants do not refer to any provision that explicitly includes such purported benefit.

The opposition further argues defenses such as impossibility and frustration of purpose would apply. As noted in the reply, the Sixth Amendment waived these defenses. To the extent defendants would argue that the Sixth Amendment is not valid due to purported “economic duress” (a contention not supported by evidence), the defenses are not necessarily applicable simply because a lease agreement fails to address them.

The court in *Lloyd v. Murphy* (1944) 25 Cal.2d 48, 53-55, stated, “[e]ven more clearly with respect to leases than in regard to ordinary contracts the applicability of the doctrine of frustration depends on the total or nearly total destruction of the purpose for which, in the contemplation of **both** parties, the transaction was entered into.” (*Ibid.*, internal citations omitted, emphasis added.)

In arguing that plaintiff’s course of performance (forgiving or abating amounts due), defendants generally refer to “the rent ledgers and the amendments,” but fail to submit or cite documents supporting this defense. Instead, defendants speculate that there is “no reason” plaintiff would not have initiated an eviction sooner, apart from waiving its rights to a portion of the rent. This speculation does not defeat the showing made by plaintiff here.

Plaintiff successfully demonstrates probable validity of its claims, and that the claims are ones upon which attachment is proper. (Code Civ. Proc., § 484.090(a)(1)-(2).) The attachment is not sought for purposes other than recovery on the claim, which amounts to a sum greater than zero. (*Id.* at (a)(3)-(4).)

Subject to the statutorily required undertaking, which shall be set at \$1,133,334.66 (\$1,189,730-\$56,395.34), and subject to the exemptions discussed herein as to Leroy M. Quan, **both applications are granted.**

11. 9:00 AM CASE NUMBER: C24-03556

CASE NAME: KILROY REALTY 303, LLC VS. LEROY QUAN

HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER; ORDER FOR ISSUANCE OF WRIT AFTER HEARING

FILED BY: KILROY REALTY 303, LLC

TENTATIVE RULING:

Please see Line 10.

12. 9:00 AM CASE NUMBER: C25-02263

**CASE NAME: THOMAS GODDARD VS. 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A
DELAWARE LIMITED LIABILITY COMPANY**

**HEARING ON ORDER TO SHOW CAUSE IN RE: PRELIMINARY INJUNCTION SET AT EXPARTE HEARING
ON 08.20.2025 BY THE COURT**

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Thomas Goddard's Application for TRO and Order to Show Cause for Preliminary Injunction.

Plaintiff's request for a preliminary injunction is **denied**.

Initial Procedural Note

Papers at Issue

Plaintiff appeared *ex parte* on August 20, 2025, seeking a TRO and an OSC regarding a preliminary injunction. Defendants filed an opposition to the TRO request along with a declaration in support. Plaintiff also filed a reply.

On that date, the Court denied the TRO and set the hearing on the OSC for January 8, 2026. The Court also set a briefing schedule indicating that Defendants shall file and serve any opposition papers re the OSC no later than nine court days prior to the hearing – *i.e.* by December 24, 2025. The Court notes that as of the drafting of this tentative ruling, well past the December 24 deadline, no subsequent briefing was filed by Defendants. As such, this ruling is based on the papers submitted by the Parties on August 20, 2025.

Plaintiff's Filings

On a related note, the Court notes that Plaintiff's initial moving papers refer and cite to numerous exhibits. It also indicates that it 'incorporates by reference' the entire case files for four separate cases. (See Memo at Sec. II Incorporation by Reference.) None of the documents identified were actually attached to the filing, nor filed concurrently therewith. A document titled "Exhibit XXXXX For Complaint" was filed on August 19 – which appears to be referenced in the moving papers. After the ruling by the Court on the TRO on August 20, Plaintiff filed three other documents. None of those documents appear to attach the numerous exhibits referenced in the moving papers.

The Court also notes that several of Plaintiff's filings are hundreds of pages long and appear to include duplicate or triplicate copies of the document to be filed. For example, the First Amended Ex Parte Application for TRO filed on August 20, 2025, includes three copies of the same papers. This increases the Court's workload in deciphering Plaintiff's papers.

The Court will not consider papers not filed with the moving papers. Plaintiff shall ensure going